

**KMVTECH EDUCATION****IPL1 · Module 3****Copyright infringement**

Lesson: Rights, exceptions, remedies

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

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**1. CORE IDEA**

Economic rights typically include reproduction, distribution, public performance, broadcasting, communication to the public and adaptation. Infringement is unauthorised exercise of these rights within the term of protection.

Exceptions and limitations (fair dealing / fair use style provisions, educational uses, libraries, quotation, temporary copies) keep the system balanced. They must be interpreted in light of the three-step test (certain special cases, no conflict with normal exploitation, no unreasonable prejudice).

Remedies include injunctions, damages, accounts of profits, delivery up and criminal sanctions for wilful commercial-scale infringement.

- Online infringement and technological protection measures raise additional enforcement and exception questions.

## 2. DETAILED RULES AND APPLICATION

Example: photocopying an entire textbook for a class without licence is likely infringement; short quotation with attribution for criticism may fall within an exception.

Map the exclusive right alleged, then test every applicable exception before concluding infringement.

### 3. UGANDA / PRACTICE, METHOD AND TRAPS

Ugandan courts and URSB handle civil and administrative enforcement; customs and police may assist at the border and against piracy. Collective management simplifies licensing for music and text.

Exam trap: ignoring statutory exceptions or treating every unlicensed use as automatically criminal without examining commercial scale and wilfulness.

Method: identify the right engaged → prove copying/taking of protected expression → test exceptions → select civil and/or criminal remedies → consider intermediary liability if online.

Completes the copyright core before moving to trade marks.

## SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. List four economic rights of a copyright owner.
2. What is the three-step test?
3. Name three typical exceptions.
4. What civil remedies are available?
5. When may criminal sanctions apply?
6. Why map rights before exceptions?

**Exam tip:** Right + taking + no exception = infringement.

## CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

**Next step:** Complete the online practice quiz for this lesson, then continue on the platform.